# NOMINATION FORM FOR MUTUAL FUND (MF) FOLIOS

Bank of India Mutual Fund

| | |
|---|---|
| Name | |
| Folio No. | |

I / We hereby nominate the following person(s) who shall receive all the assets held in my / our account / folio in the event of my / our demise, as trustee and on behalf of my / our legal heir(s)

| Mandatory Details | Nominee 1 | Nominee 2 | Nominee 3 |
|---|---|---|---|
| Name of nominee | | | |
| Share of nominee (%)** | | | |
| Relationship | | | |
| Postal Address | | | |
| Mobile number & E-mail | Mobile number | Mobile number | Mobile number |
| | E-mail | E-mail | E-mail |
| Identity Number *** | | | |
| Additional Details (Incase Nominee is minor) | | | |
| Date of Birth of nominee | | | |
| Guardian details | Name | Name | Name |
| | Address | Address | Address |

** If % is not specified, then the assets shall be distributed equally amongst all the nominees. Any odd lot after division / fraction of %, shall be transferred to the first nominee mentioned in the nomination form. (see table in 'Transmission aspects').

*** Provide only number: PAN or Driving Licence or Aadhaar (last 4 digit of Aadhaar). Copy of the document is not required. However, in case of NRI / OCI / PIO, Passport number is acceptable.

1) **I / We want the details of my / our nominee to be printed in the statement of holding or statement of account, provided to me/ us by the AMC / DP as follows; (please tick, as appropriate)**

   ☐ **Name of nominee(s)** ☐ **Nomination: Yes / No**

2) I hereby authorize _____(nominee number _____) to operate my account on my behalf, in case of my incapacitation in terms of paragraph 3.5 of the circular. He / She is authorized to encash my assets up to _____% of assets in the account / folio or ₹ _____. (Optional) (strike off portions that are not relevant)

3) This nomination shall supersede any prior nomination made by me / us, if any.

4) Signature(s) – As per the mode of holding in demat account(s) / MF folio(s)

5) * Signature of two witness(es), along with name and address are required, if the account holder affixes thumb impression, instead of wet signature.

| Transmission aspects | |
|---|---|
| **Event** | **Transmission of Account / Folio to** |
| Demise of one or more joint holder(s) | Surviving holder(s) through name deletion<br>The surviving holder(s) shall inherit the assets as owners. |
| Demise of all joint holders simultaneously – having nominee | Nominee |
| Demise of all joint holders simultaneously – not having nominee | Legal heir(s) of the youngest holder |

| Signature(s) – As per mode of holding in demat accounts / MF Folio(s) for existing investors | | | | |
|---|---|---|---|---|
| Name of the Holder | | Signature/ Thumb Impression of holder | Signature of two witness(es) along with name & address are required, if the account holder affixes thumb impression instead of signature | |
| | | | Name & Address of Witness | Witness Signature |
| Sole / 1st Holder (Mr./Ms.) | | | Witness 1 - Name:<br>Address: | Witness 1 |
| | | | Witness 2 - Name<br>Address: | Witness 2 |
| 2nd Holder (Mr./Ms.) | | | Witness 1 - Name:<br>Address: | Witness 1 |
| | | | Witness 2 - Name<br>Address: | Witness 2 |
| 3rd Holder (Mr./Ms.) | | | Witness 1 - Name:<br>Address: | Witness 1 |
| | | | Witness 2 - Name<br>Address: | Witness 2 |

Any odd lot after division shall be assigned / transferred to the first nominee mentioned in the form.

## Rights, Entitlement and Obligation of the investor and nominee:

- If you are opening a new demat account / MF folios, you have to provide nomination. Otherwise, you have to follow procedure as per 3.10 of this circular.
- You can make nomination or change nominee any number of times without any restriction.
- You are entitled to receive acknowledgement from the AMC / DP for each instance of providing or changing nomination.
- Upon demise of the investor, the nominees shall have the option to either continue as joint holders with other nominees or for each nominee(s) to open separate single account / folio.
- In case all your nominees do not claim the assets from the AMC / DP, then the residual unclaimed asset shall continue to be with the AMC in case of MF units and with the concerned Depository in case of Demat account.
- You have the option to designate any one of your nominees to operate your account / folio, in case of your physical incapacitation, at any point of time and not just during opening of account / folio. This mandate can be changed any time you choose.
- The signatories for this nomination form shall be as per mode of holding in the folio(s) / demat account(s) i.e.
  - 'Either or Survivor' Folios / Accounts - any one of the holder can sign
  - 'First holder' Folios / Accounts - only First holder can sign
  - 'Jointly' Folios / Accounts - all holders have to sign

## Instructions

1. The nomination should be made only by individuals holding units on their own behalf singly or jointly.
2. Non-individuals including a Society, Trust, Body Corporate, Partnership Firm, Karta of Hindu undivided family, a Power of Attorney holder and/or Guardian of Minor unitholder *cannot* **nominate.**
3. Nomination is not allowed in a folio of a Minor unitholder.
4. If the units are held jointly (i.e., in case of multiple unitholders in the folio), all joint holders need to sign the Nomination Form (even if the mode of holding/operation is on "Anyone or Survivor" basis).
5. A minor may be nominated. In that event, the name and address of the Guardian of the minor nominee needs to be provided.
6. Nomination can also be in favour of the Central Government, State Government, a local authority, any person designated by virtue of his office or a religious or charitable trust.
7. The Nominee shall not be a trust (other than a religious or charitable trust), society, body corporate, partnership firm, Karta of Hindu Undivided Family or a Power of Attorney holder.
8. A Non-Resident Indian may be nominated subject to the applicable exchange control regulations.
9. **Multiple Nominees:** Nomination can be made in favour of multiple nominees, subject to a maximum of three nominees. In case of multiple nominees, the percentage of the allocation/share should be in whole numbers without any decimals, adding upto a total of 100%. If the total percentage of allocation amongst multiple nominees does not add up to 100%, the nomination request shall be treated as invalid and rejected. If the percentage of allocation/ share for each of the nominee is not mentioned, the allocation/ claim settlement shall be made equally amongst all the nominees.
10. Every new nomination for a folio/account shall overwrite the existing nomination, if any.
11. Nomination made by a unit holder shall be applicable for units held in all the schemes under the respective folio / account.
12. Nomination shall stand rescinded upon the transfer of units.
13. **Death of Nominee/s:** In the event of the nominee(s) pre-deceasing the unitholder(s), the unitholder/s is/are advised to make a fresh nomination soon after the demise of the nominee. The nomination will automatically stand cancelled in the event of the nominee(s) pre-deceasing the unitholder(s). In case of multiple nominations, if any of the nominee is deceased at the time of death claim settlement, the said nominee's share will be distributed equally amongst the surviving nominees.
14. **Transmission of units in favour of a Nominee shall be valid discharge by the asset management company/ Mutual Fund / Trustees against the legal heir(s).**
15. **Cancellation of Nomination:** Request for cancellation of Nomination made can be made only by the unitholders. The nomination shall stand rescinded on cancellation of the nomination and the AMC shall not be under any obligation to transfer / transmit the units in favour of the Nominee.
16. Unitholders who do not wish to nominate are required to confirm the same by indicating their choice in the space provided in the nomination form.
17. The nomination will be registered only when this form is completed in all respects to the satisfaction of the AMC.
18. In respect of folios/accounts where the Nomination has been registered, the AMC will not entertain any request for transmission / claim settlement from any person other than the registered nominee(s), unless so directed by any competent court.

**Transmission aspects**

- AMCs / DPs shall transmit the folio / account to the nominee(s) upon receipt of 1) copy of death certificate and 2) completion / updation of KYC of the nominee(s). The nominee is not required to provide affidavits, indemnitites, undertakings, attestations or notarization.
- In case of a joint account / folio, for transmission to the surviving joint holder(s) by name deletion, the surviving joint holder(s) shall have the option to update residential address(es), mobile number(s), email address(es), bank account detail(s), annual income and nominee(s), either at the time of transmission or at a later date. The regulated entity cannot seek KYC documents from the surviving joint holder(s) at the time of transmission, unless it was sought earlier but not provided by the holder(s).
- Nominee(s) shall extend all possible co-operation to transfer the assets to the legal heir(s) of the deceased investor. In this regard, no dispute shall lie against the AMC / DP.
- In case of multiple nominees the assets shall be distributed pro-rata to the surviving nominees, as illustrated below.

| % share as specified by investor at the time of nomination | | % assets to be appointed to surviving nominees upon demise of investor and nominee 'A' | | | |
|---|---|---|---|---|---|
| **Nominee** | **% Share** | **Nominee** | **% initial share** | **% of A's share to be appointed** | **Total % share** |
| A | 60% | A | 0 | 0 | 0 |
| B | 30% | B | 30% | 45% | 75% |
| C | 10% | C | 10% | 15% | 25% |
| **Total** | **100%** | **-** | **40%** | **60%** | **100%** |